

		The evidence thus shows the contract, Plaintiff's performance, Johnsonvan's breach, and resulting damages. Accordingly, Plaintiff met its initial burden of establishing each element of its breach of contract claim. Johnsonvan failed to oppose the motion and thus failed to show there are any disputed issues of material fact to prevent summary adjudication. Based on the foregoing, the motion is GRANTED. Counsel for Plaintiff is to submit a proposed order and is ordered to give notice of this ruling.
7	Vicens vs. General Motors, LLC	Cont. to 6/13.
8	Cappuccini v. The Regents of the University of California	Before the Court is a demurrer filed by defendant The Regents of the University of California (Defendant) to the Second Amended Complaint (SAC) of plaintiff Fabio Cappuccini (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED with 20 days' leave to amend. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code of Civ. Proc. § 430.10, subd. (e).) Defendant demurs to the second cause of action for wrongful termination. Because a public entity is liable for acts or omissions only as provided by statute, a common law claim for wrongful termination in violation of public policy does not lie against a public entity. (Gov. Code § 815, subd. (a); <i>Miklosy v. Regents of the University of California</i> (2008) 44 Cal.4th 876, 900-901; <i>Lloyd v. County of Los Angeles</i> (2009) 172 Cal.App.4th 320, 329; <i>McAllister v. Los Angeles Unified School Dist.</i> (2013) 216 Cal.App.4th 1198, 1219.) Plaintiff argues the wrongful termination claim is grounded in the statutory policy of FEHA, which expressly applies to public entities. Plaintiff's argument is misplaced. It is true public entities are covered "employers" subject to FEHA. (Gov. Code § 12926, subd. (d).) But Plaintiff does not allege any statutory claim pursuant to FEHA. The fact that Plaintiff's wrongful termination is tethered to the public policy under FEHA does not change the common law claim to a statutory claim. Plaintiff next argues that he alleges a viable claim for breach of contract. Preliminarily, the second cause of action is specifically captioned "wrongful termination" not breach of contract. (SAC, p. 3.) Plaintiff also fails to plead the elements of a breach of contract claim, including the contractual terms allegedly breached and Plaintiff's performance or excuse for performance. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; <i>Construction Protective Services, Inc. v. TIG Specialty Ins. Co.</i> (2002) 29 Cal.4th 189, 198-199 [a written contract may be pleaded verbatim, by its legal intent and effect].)